THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
Court No-II

Item 11

CP (CAA) No. 22/Chd/Hry/2022
(2nd Motion)
Under Section 230-232, CA 2013,

In the matter of:-

Adva Optical Networking India Pvt. Ltd. ...Transferor Company

And

Adva IT Solutions India Pvt. Ltd. ...Transferee Company

Present: Mr Pulkit Goyal, proxy for Mr. Shivam Narang, advocate for the petitioner companies.
Mr. Yogesh Putney, Senior Standing Counsel for Income Tax Department.

Heard the submissions made by the learned proxy counsel for the petitioner companies. Learned proxy Counsel for the petitioner Companies is directed to inform the main counsel/arguing counsel to verify whether the compliance affidavit in terms of section 230-232 has been complied with or not. Learned counsel for the Income Tax Department is present today and submitted that they have given a clean report and the same has been filed vide diary No.00481/3 dated 30.06.2023. The same is taken on record. The petitioner is directed to file an affidavit with regard to the applicability of Competition Commission Act as per the criteria prescribed therein. Let the matter be posted for 18.09.2023.

Sd/-
(Umesh Kumar Shukla)
Member (Technical)

Sd/-
(Dr. P.S.N. Prasad)
Member (Judicial)

August 25, 2023
Priyanka